

## Payment of Bonus Rules, 1975

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[Rule PAYMENT-OF-BONUS-RULES-1975 of 1975](#)

[Published on 21 August 1975](#)

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[Payment of Bonus Rules, 1975](#)

[Published vide G.S.R. 2367, dated 21.8.1975, published in the Gazette of India, Part II, Section 3\(i\), dated 6.9.1975](#)

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[In exercise of the powers conferred by section 38 of the Payment of Bonus Act, 1965 \( 21 of 1965](#)

[\), and in supersession of the Payment of Bonus Rules, 1965, the Central Government hereby makes the following rules, namely: -](#)

[1.](#)

[Short title and commencement. - \(1\) These rules may be called The Payment of Bonus Rules, 1975.](#)

[\(2\)](#)

[They shall come into force on the date of their publication in the Official Gazette.](#)

2.

Definitions. - In these rules-

(a)

"form" means a form appended to these rules;

(b)

"Act" means the Payment of Bonus Act, 1965 (

21 of 1965

);

(c)

"section" means a section of the Act.

3.

Authority for granting permission for change of accounting year. - The prescribed authority for the purposes of the proviso to paragraph (b) of sub-clause (iii) of clause (1) of section 2 shall be-

(a)

in the case of an establishment in relation to which the Central Government is the appropriate Government under the Act, the Chief Labour Commissioner (Central);

(b)

in any other case, the Labour Commissioner of the State in which the establishment is situated.

4.

Maintenance of registers. - Every employer shall prepare and maintain the following registers, namely:-

(a)

a register showing the computation of the allocable surplus referred to in clause (4) of section 2, in Form A;

(b)

a register showing the set-on and set-off of the allocable surplus, under section 15, in Form B;

(c)

a register showing the details of the amount of bonus due to each of the employees, the deductions under sections 17 and 18 and the amount actually disbursed, in Form C.

5.

[ Annual return.

- Every employer shall, on or before the 1st day of February in each year, upload unified annual return in Form D on the web portal of the Central Government in the Ministry of Labour and Employment giving information as to the particulars specified in respect of the preceding year:

Provided that during inspection, the inspector may require the production of accounts, books, registers and other documents maintained in electronic form or otherwise.

Explanation. - For the purposes of this rule, the expression "electronic form" shall have the same meaning as assigned to it in clause (r) of section 2 of the Information Technology Act, 2000 (

21 of 2000

).]

FORM A

[See rule 4(a)]

Computation Of The Allocable Surplus Under Section 2(4)

Name of the establishment.....

Accounting year ending on the .....

Sums deducted from gross profits

Gross profit for the accounting year Rs.

Depreciation under section 6(a)

Development rebate or Development allowance section 6(b)

Direct taxes section 6(c)

Further sums as are specified under the Third Schedule to the Act

Total of sums deducted under columns 2, 3, 4 and 5

Available surplus for the accounting year (Column 1 minus Column 6)

Amount of allocable surplus (@  
67%) (\*60% of Column 7)

1  
2  
3  
4  
5  
6  
7  
8

@ Section 2(4)(a)

\* Section 2(4)(b)

FORM B

[See rule 4(b)]

Set-On And Set-Off Allocable Surplus Under Section 15

Accounting year

Amount allocable as bonus (in Rs.)

Amount payable as bonus (in Rs.)

Amount of set on or set-off (in Rs.)

Total set-on or set-off carried forward

1  
2  
3  
4  
5

FORM C

[See rule 4(c)]

Bonus Paid To Employees For The Accounting Year Ending On The .....

Name of the establishment .....

No. of Working days in the year .....

Sl. No.

Name of the employee

Father's Name

Whether he has completed 15 years of age at the beginning of the accounting year

Designation

No. of days worked in the year

Total salary or wage in respect of the accounting year

Amount of bonus payable under section 10 or section 11, as the case may be

1  
2  
3  
4  
5  
6  
7  
8

Pujabonus other customary during the accounting year

Interim bonus or bonus paid advance

Amount of Income-tax deducted

Deduction on account of financial loss, if any, caused by misconduct of the employee

[Total sum deducted under Columns 9, 10, 10A and 11]

[Substituted by G.S.R. 1147, dated 23-8-1979 (w.e.f. 8-9-1979)]

Net amount payable (Column 8 minus Column 12)

Amount actually Paid

Date on which paid

Signature/Thumb Impression of the employee

9

10

10A

11

12

13

14

15

16

[FORM D]

[Inserted by S.O. 251, dated 7-1-1984 (w.e.f. 21-1-1994)]

[See rule 5]

Annual Return-Bonus Paid To Employees For The Accounting Year Ending On The .....

1. Name of the establishment and its complete postal address:

2. Name of industry:

3. Name of the employer:

4. Total number of employees:

5. Number of employees benefited by bonus payments:

Total amount payables as bonus under section 10 or 11 of the Payment of Bonus Act, 1965 as the case may be  
Settlement, if any, reached under section 18(1) of 12(3) of the Industrial Disputes Act, 1947 with date

Percentage of bonus declared to be paid

Total amount of bonus actually paid

Date on which payment made

Whether bonus has been paid to all the employees, if not, reasons for non-payment

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Signature of the employer or his agent.

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